

[24 & 25 GEO. 5.] *Provisional Orders* [Ch. xlvii.]
(*Marriages*) *Confirmation Act, 1934.*



CHAPTER xlvii.

An Act to confirm certain Provisional Orders made A.D. 1934.
by one of His Majesty's Principal Secretaries of
State under the Marriages Validity (Provisional
Orders) Acts 1905 and 1924. [12th July 1934.]

WHEREAS under the provisions of the Marriages 5 Edw. 7.
Validity (Provisional Orders) Acts 1905 and 1924 c. 23.
one of His Majesty's Principal Secretaries of State has 14 & 15
made Provisional Orders which need confirmation by Geo. 5. c. 20.
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The Orders of the Secretary of State which are Orders in
set out in the schedule to this Act are hereby confirmed schedule
and shall have full validity and force. confirmed.

2. This Act may be cited as the Provisional Orders Short title.
(Marriages) Confirmation Act 1934.

[Ch. xlvii.] *Provisional Orders* [24 & 25 GEO. 5.]
(*Marriages*) *Confirmation Act*, 1934.

A.D. 1934.

SCHEDULE.

*Wesleyan
Chapel
Millbrook
Order.*

WESLEYAN CHAPEL MILLBROOK ORDER.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas on the twenty-sixth day of March one thousand nine hundred and thirty-two and on the twenty-seventh day of August one thousand nine hundred and thirty-two marriages were solemnized in the Wesleyan Chapel (now Methodist Chapel) Millbrook a registered building in the Registration District of St. Germans in the County of Cornwall :

And whereas the aforesaid marriages were solemnized without the presence of any registrar and not in the presence of a duly authorised person and the particulars relating to the said marriages were not registered in the manner provided by the Marriage Act 1898 :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriages and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir John Gilmour Baronet one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) The marriages solemnized on the twenty-sixth day of March one thousand nine hundred and thirty-two and on the twenty-seventh day of August one thousand nine hundred and thirty-two in the Wesleyan Chapel (now Methodist Chapel) Millbrook in the Registration District of St. Germans in the County of Cornwall shall be and shall be deemed to have been as valid as if the said marriages had been solemnized in the presence of a duly authorised person and as if the particulars

[24 & 25 GEO. 5.] *Provisional Orders* [Ch. xlvii.]
(*Marriages*) *Confirmation Act, 1934.*

relating to the said marriages had been duly registered in the manner provided by the Marriage Act 1898 :

A.D. 1934.

- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever by reason of having solemnized the marriages :
- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

—
*Wesleyan
Chapel
Millbrook
Order.*

SAINT GEORGE THE MARTYR HINDOLVESTONE
ORDER.

*Saint George
the Martyr
Hindolve-
stone Order.*

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas a new church of Saint George the Martyr situate within the parish of Hindolvestone in the county of Norfolk and the diocese of Norwich was duly consecrated for the performance of divine service on the sixth day of November one thousand nine hundred and thirty-two but it appears that the Instrument substituting the said church for the ancient parish church (known as the church of Saint George) of the said parish in pursuance of the provisions of the Acts 8 and 9 Vict. c. 70 and 19 and 20 Vict. c. 55 was not executed until the sixth day of April one thousand nine hundred and thirty-three :

And whereas certain marriages have nevertheless been solemnized in the said church of Saint George the Martyr Hindolvestone between the sixth day of November one thousand nine hundred and thirty-two and the sixth day of April one thousand nine hundred and thirty-three :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriages and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir John Gilmour Baronet one of His Majesty's Principal Secretaries of State in

[Ch. xlvii.] *Provisional Orders* [24 & 25 GEO. 5.]
(*Marriages*) *Confirmation Act*, 1934.

A.D. 1934.
—
*Saint George
the Martyr
Hindolve-
stone Order.*

pursuance of the powers conferred on me by the said *Marriages Validity (Provisional Orders) Acts 1905 and 1924* do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the sixth day of November one thousand nine hundred and thirty-two and the sixth day of April one thousand nine hundred and thirty-three in the church of Saint George the Martyr in the parish of Hindolvestone in the county of Norfolk and diocese of Norwich shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :
- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :
- (3) The register of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of these marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

*Chapel of
Ease of
St. James
Barnoldswick
Order.*

CHAPEL OF EASE OF ST. JAMES BARNOLDSWICK
ORDER.

WHEREAS power is given to a Secretary of State by the *Marriages Validity (Provisional Orders) Acts 1905 and 1924* in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas the Chapel of Ease of St. James in the parish of Barnoldswick in the County of York West Riding in the diocese of Bradford was licensed temporarily on the seventeenth day of June one thousand nine hundred and thirty-two for the publication of banns and the solemnization of marriages whilst the parish church of St. Mary le Gill Barnoldswick should be closed for cleaning and repairs and until the same should be re-opened for the performance of divine service :

[24 & 25 GEO. 5.] *Provisional Orders* [Ch. xlvii.]
(*Marriages*) *Confirmation Act, 1934.*

And whereas the temporary licence lapsed under its conditions on the fourth day of November one thousand nine hundred and thirty-two :

And whereas two marriages were nevertheless solemnized in the said Chapel of Ease of St. James Barnoldswick on the twenty-eighth day of February one thousand nine hundred and thirty-three :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriages and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir John Gilmour Baronet one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the fourth day of November one thousand nine hundred and thirty-two and the date of this Order in the Chapel of Ease of St. James in the parish of Barnoldswick in the County of York West Riding in the diocese of Bradford shall be deemed to have been as valid as if they had been published and solemnized in a church in which such marriages might be solemnized lawfully :
- (2) The minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriages :
- (3) The register of the marriages so solemnized or copies of the register shall be received in all courts as evidence of these marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

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A.D. 1934.

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*Chapel of
Ease of
St. James
Barnoldswick
Order.*

